

requirement that a motion for leave to file an amended pleading must include a declaration specifying (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amendment were discovered, and (4) why said facts could not have been discovered earlier. The motion must also include a copy of the proposed amended pleading and information directly identifying each change the amendment would make.

Plaintiff's motion to continue all presently set hearings for one year is denied. The court notes that Plaintiff has been able to file his own motion to compel discovery, filed on November 12, 2025, and has filed an opposition to the demurrer by Defendant Amrock set for March 13, 2026.

The Parties are to appear, however, to discuss continuing Defendant Cit Bank's demurrer to March 13, 2026.

NORMAN ROSS DEYOUNG, JR. vs. ALBERTSON COMPANIES, INC.; ET AL.
Case No. CU25-08680

Special Motion to Strike

TENTATIVE RULING

Defendants' special motion to strike is granted.

"The law is that communications to the police are within SLAPP." (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941.) Plaintiff's causes of action are all based on a report made by Defendants' employee to law enforcement. (FAC, ¶¶ 9, 14, 17-18, 21, 23-25.) In fact, Plaintiff explicitly admitted that the causes of action "arise directly from Defendants' *unprotected, criminal conduct: the willful and malicious fabrication of a false police report*, as explicitly pleaded and supported by Exhibit A". (Decl. of Dolin, Exh. E, bold added.) Consequently, the burden shifted to Plaintiff to show a probability of prevailing on the merits. (*Varian Med. Sys., Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.)

But, Plaintiff has not, and cannot, establish a reasonable probability to prevail on the merits. Defendants have an absolute privilege for any "statement urging law enforcement personnel to investigate another person's suspected violation of criminal law, to apprehend a suspected lawbreaker, or to report a crime to prosecutorial authorities". (*Hagberg v. Cal. Fed. Bank* (2004) 32 Cal.4th 350, 360, 364.) The privilege is **absolute**, even upon a showing of malice, barring all tort causes of action except a claim of malicious prosecution. (*Action Apartment Ass'n, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241-1242; *Hagberg*, 32 Cal.4th at 360; *Kimmel v. Goland* (1990) 51 Cal.3d 202, 209.) "[S]tatements made when a citizen contacts law enforcement personnel to report suspected criminal activity on the part of another person ... can be the basis for tort liability only if the plaintiff can establish the elements

of the tort of malicious prosecution.” (*Hagberg*, 32 Cal.4th at 355.) But, because there can be no claim of malicious prosecution without some “action” or “proceeding” that was first “commenced” and then “favorably terminated” (*Van Audenhove v. Perry* (2017) 11 Cal.App.5th 915, 919), Plaintiff is unable to assert a claim of malicious prosecution against Defendants.

GABRIELLA DRAGGES; ET AL. vs. STARBUCKS, LLC
Case No. FCS058279

Motion to Deem Matters Admitted

TENTATIVE RULING

The Parties are to appear.

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